At the outbreak of the War for Independence and at the time of the adoption of the Constitution, there were stamp taxes on the circulation and taxes on the advertising matter of English newspapers. The circulation tax became effective in 1712 and it was not repealed until 1855. The advertising tax became effective in 1712 and was abolished in 1853. James Paterson, The Liberty of the Press, London, 1880, pp. 56–58.

During the debates on the ratification of the Constitution, one of the burning issues before the public was the failure of the constitutional convention to include in the body of the document a so-called bill of rights including a guaranty of a free press. Richard Henry Lee, Eleazer Oswald, Melancthon Smith, and other patriots in the debates over ratification specifically assailed the Convention for failing to include a free press provision which would prohibit suppression of the press by taxation.

Since the ratification of the Fourteenth Amendment, the guaranty of free press expressed in the First Amendment, is binding upon state legislatures as well. *Near* v. *Minnesota, supra; Gitlow* v. *New York,* 268 U. S. 652; *Whitney* v. *California,* 274 U. S. 357.

The power to tax the press is the power to destroy it.

One of the purposes of this tax was to divert business from newspapers having a circulation of more than 20,000 per week to newspapers with less circulation.

The levy is a direct tax upon the newspaper publishing business. Its effect is immediate, direct and punitive. Cf. *Brown* v. *Maryland,* 12 Wheat. 419; *Cook* v. *Pennsylvania,* 97 U. S. 566; *Ex parte Harrison,* 212 Mo. 88.

A tax on the principal source of revenue of a newspaper is a tax upon its subsistence. *Evans* v. *Gore,* 253 U. S. 245.

An attempt to tax the press over a certain size is a direct violation of this provision. The record shows that circulation is but one of many factors affecting advertis-